SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: SLP (Crl.) No. 5191 of 2021 (YEAR: 2022)

CORAM: SANJAY KISHAN KAUL, M.M. SUNDRESH

Satender Kumar Antil
... Appellant(s) / Petitioner(s)
Versus
Central Bureau of Investigation
... Respondent(s)

Acts Referred:	Code of Criminal Procedure, 1973
Sections:	Section 437 CrPC, Section 439 CrPC, Section 41A CrPC, Section 88 CrPC

JUDICIAL HEADNOTE & SUMMARY

Issued comprehensive landmark guidelines categorizing offences into groups A, B, C, and D to prevent unnecessary pre-trial detention and ensure consistent bail adjudication.

RATIO DECIDENDI

The Court held that: Issued comprehensive landmark guidelines categorizing offences into groups A, B, C, and D to prevent unnecessary pre-trial detention and ensure consistent bail adjudication. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Satender Kumar Antil v. Central Bureau of Investigation (SLP (Crl.) No. 5191 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Code of Criminal Procedure, 1973, particularly Section 437 CrPC, Section 439 CrPC, Section 41A CrPC, Section 88 CrPC. Issued comprehensive landmark guidelines categorizing offences into groups A, B, C, and D to prevent unnecessary pre-trial detention and ensure consistent bail adjudication.

OPERATIVE ORDER

ORDER: Decided